

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
GILBERT REAPE,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. PETER RAMOS Tax  
Reg. #957067 and P.O. JOHN DOE,

Defendants.  
-----X

Index No.:

Date Purchased:

**SUMMONS**

Plaintiff designates Kings  
County as the place of trial.

The basis of venue is:  
Plaintiff's Residence

Plaintiff resides at:

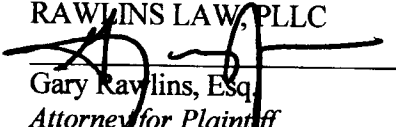
County of Kings

**To the above named Defendant:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, NY  
August 24, 2017

RAWLINS LAW, PLLC

  
Gary Rawlins, Esq.  
*Attorney for Plaintiff*

**GILBERT REAPE**

777 Westchester Ave, Suite #101

White Plains, NY 10604

Tel: (212) 926-0050

Fax: (347) 332-1592

TO:

CITY OF NEW YORK  
Zachary Carter, Esq. (Corporation Counsel)  
The City of New York Law Department  
100 Church Street  
New York, New York 10007

P.O. PETER RAMOS Tax Reg. #957067  
88<sup>th</sup> Precinct  
298 Classon Ave,  
Brooklyn, NY 11205

P.O. JOHN DOE

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF **KINGS**

Index No.:

Date Purchased:

-----X  
GILBERT REAPE,

**VERIFIED  
COMPLAINT**

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. PETER RAMOS Tax  
Reg. #957067 and P.O. JOHN DOE,  
Defendants.

-----X

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified Complaint,  
respectfully alleges, upon information and belief that:

1. The Plaintiff, **GILBERT REAPE**, at all times herein mentioned was and still is a resident of the County of New York and the State of New York.
2. At all times mentioned herein, Defendants **CITY OF NEW YORK and P.O. PETER RAMOS Tax Reg. #957067** and others not presently known to Plaintiff (**P.O. JOHN DOE**) were and still are residents of the County of New York and the State of New York.
3. At all times herein mentioned, Defendant **THE CITY OF NEW YORK ("NYC")** was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
4. Prior to the commencement of this action, a notice of claim in writing was served on behalf of Plaintiff **GILBERT REAPE** upon **NYC** in accordance with Section 50-e of the General Municipal Law.
5. That a notice of claim was served on March 16, 2017.

6. Within ninety days of (90) of February 3, 2017, a notice of claim in writing was served on behalf of Plaintiff **GILBERT REAPE** upon **NYC**, in accordance with Section 50-e of the General Municipal Law.
7. Prior to the commencement of this action, notice of the intention of Plaintiff **GILBERT REAPE** to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by the New York City Charter to adjust such claims, was served on behalf of Plaintiff upon **NYC**.
8. Although more than thirty (30) days have elapsed since service of such notice of claim, Defendants neglected and have refused to pay said claim or adjust same.
9. A hearing pursuant to General Municipal Law 50-h was held on May 24, 2017.
10. This action is commenced within one (1) year and ninety (90) days from February 3, 2017, the date of the end of malicious prosecution.
11. At all relevant times, Defendants **P.O. PETER RAMOS Tax Reg. #957067** and **P.O. JOHN DOE** were employees of Defendant **CITY**, and were acting for, upon and in the course of and in the furtherance of the business of their employers and within the scope of their employment.
12. The individual Defendants were acting pursuant to the authority conferred upon them by defendant police department and defendant municipality.
13. At all times herein mentioned, Defendants **NYC** and **P.O. PETER RAMOS Tax Reg. #957067** and **P.O. JOHN DOE**, stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.
14. Defendants **NYC** are vicariously liable for the acts of Defendants **P.O. PETER RAMOS Tax Reg. #957067** and **P.O. JOHN DOE**.

15. By reason of the foregoing, Plaintiff **GILBERT REAPE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR THE FIRST CAUSE OF ACTION FOR FALSE ARREST AS AGAINST  
ALL DEFENDANTS**

16. Plaintiff **GILBERT REAPE** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

17. Plaintiff **GILBERT REAPE** sues all Defendants in their individual capacities.

18. On May 28, 2016, Plaintiff **GILBERT REAPE** was wrongfully, unlawfully and unjustifiably arrested, detained and deprived of his liberty against his will, and was imprisoned by defendants, their officers, agents, servants, employees, agencies and/or departments and/or at the instigation of those departments.

19. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant.

20. At all relevant times, defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **GILBERT REAPE**.

21. On or about May 28, 2016, at approximately 1:15pm, Plaintiff **GILBERT REAPE** was lawfully in his truck at or about the intersection of Grand Avenue and Putnam Avenue when **P.O. PETER RAMOS Tax Reg. # 957067** and **P.O. JOHN DOE** approached Plaintiff and asked him questions about an assault in the area. **P.O. PETER RAMOS Tax Reg. # 957067** and **P.O. JOHN DOE** asked Plaintiff to get out of the car. Plaintiff had just moved and was wearing a tool belt complete with a box cutter. **P.O. PETER**

**RAMOS Tax Reg. # 957067 and P.O. JOHN DOE** arrested Mr. Reape and brought him to 88th Precinct where he remained for approximately 8 hours. Mr. Reape was released and all charges were dismissed on or about February 3, 2017.

22. Throughout this period, Plaintiff **GILBERT REAPE** was wrongfully, unlawfully and unjustifiably held under arrest, deprived of his liberty, imprisoned, and falsely charged.
23. Defendants, their officers, agents, servant and/or employees were responsible for Plaintiff **GILBERT REAPE** arrest, detention and imprisonment during this period of time.
24. Throughout Plaintiff **GILBERT REAPE** imprisonment, Defendants, and their officers, agents, servants, and employees refused to give Plaintiff an opportunity to establish his innocence.
25. Defendants intended to and did in fact confine Plaintiff **GILBERT REAPE** and physically prevented him from leaving their custody and kept him under the supervision without access to his freedom, family and home.
26. Plaintiff **GILBERT REAPE** was conscious of his unlawful arrest, detention and imprisonment and did not consent to the confinement.
27. At all relevant times, the unlawful, wrongful and false arrest and imprisonment of Plaintiff **GILBERT REAPE** was without right or privilege, and unjustified and without probable or reasonable cause.
28. At no time did Defendants or their officers, agents, servants, employees, agencies and/or departments have a warrant or other legal process for the arrest, detention or imprisonment of Plaintiff **GILBERT REAPE**.
29. On or about the time of Plaintiff **GILBERT REAPE** unlawful arrest, criminal charges were brought against him and those same charges were later dismissed.

30. At all relevant times, the false, unlawful, and improper arrest and imprisonment of

Plaintiff **GILBERT REAPE** was forcible and against his will.

31. All of the foregoing occurred without fault or provocation on the part of Plaintiff

**GILBERT REAPE.**

32. As consequences of Defendants' wrongful actions, negligent behavior, and violation of

New York State and common laws, Plaintiff **GILBERT REAPE:**

- a. was deprived of his freedom;
- b. was incarcerated and suffered in incarceration;
- c. was subjected to great fear, terror, personal humiliation, degradation, ridicule and disgrace;
- d. was subjected to great physical, mental, and emotional distress, suffering and harm;
- e. was discredited in the minds of many members of the community, having his personal reputation and character injured;
- f. was prevented from attending to his necessary affairs in business during the period of his detention;
- g. was permanently impaired as to his earning ability;
- h. and continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of Defendants, their agents, employees, and servants.

33. Defendants acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being, and were guilty of egregious and gross misconduct toward him.

34. By reason of the foregoing, Plaintiff **GILBERT REAPE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE ARREST AS AGAINST**  
**ALL DEFENDANTS**

35. Plaintiff **GILBERT REAPE** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

36. On or about May 28, 2016, Defendants **NYC, P.O. PETER RAMOS Tax Reg. #957067 and P.O. JOHN DOE** wrongfully, unlawfully, maliciously, and without any warrant or pretense of legal process, detained, imprisoned and confined Plaintiff **GILBERT REAPE**, depriving Plaintiff of his liberty.

37. Plaintiff **GILBERT REAPE** unlawful detention and arrest arose from the taking of Plaintiff into custody to be held to answer for a crime.

38. The aforementioned arrest and subsequent detention were without probable cause or any justification and were further based upon Defendants' false statements, falsified reports, falsified documents, falsified evidence and or perjured testimony.

39. By reason of Defendants' actions, Plaintiff **GILBERT REAPE** suffered the afore-stated personal injury, was deprived of his liberty and was otherwise greatly injured.

40. By reason of the foregoing, Plaintiff **GILBERT REAPE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FAILURE TO INTERVENE TO  
PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS AS AGAINST  
ALL DEFENDANTS**

41. Plaintiff **GILBERT REAPE** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.
42. As a result of the above actions, Defendants **NYC** individually, and/or vicariously, by and through its agents, servants and /or employees, and **OFFICERS** failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **GILBERT REAPE** by defendant **P.O. PETER RAMOS Tax Reg. #957067 and P.O. JOHN DOE**.
43. As a result of the foregoing, Defendants **NYC** individually and and/or vicariously by and through their agents servants, and/or employees, and **P.O. PETER RAMOS Tax Reg. #957067 and P.O. JOHN DOE** displayed a deliberate indifference to Plaintiff **GILBERT REAPE** rights to be free from unreasonable searches and seizures and excessive use of force.
44. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants, and/or employees, including **P.O. PETER RAMOS Tax Reg. #957067 and P.O. JOHN DOE** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to the plaintiff rights and physical well being.
45. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION  
FOR NEGLIGENT HIRING, TRAINING, RETENTION, AND SUPERVISION  
AGAINST DEFENDANTS NYC**

46. Plaintiff **GILBERT REAPE** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.
47. That at the time of the aforementioned false arrest, false imprisonment, defamation, and violations of Plaintiff **GILBERT REAPE'S** civil rights, all of the above-captioned Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by Defendant **CITY**.
48. Defendants **NYC** at all relevant times herein should have known or had reason or opportunity to know, that the agents, servants and/or employees named as defendants in this complaint were unfit for the employment for which they were hired, unfit for the official duties delegated to them and unfit for the law enforcement, investigatory, and prosecutorial responsibilities to which they were assigned.
49. That by hiring, retaining, employing, failing to supervise, failing to screen, failing to test, failing to evaluate, failing to monitor, failing to manage, failing to train and failing to investigate the aforementioned agents, servants and/or employees, Defendants **NYC** negligently created and caused a situation where it was likely that said agents, servants and/or employees would, as a result of their work history, unfit character, malicious temperament, criminal propensity, inadequate training, inadequate management and inadequate supervision, unlawfully arrest, unlawfully imprison, unlawfully deprive innocent persons such as Plaintiff **GILBERT REAPE** of their Constitutional rights under the New York State Constitution, intentionally, wrongfully and unjustifiably arrested, detained and deprived such person of his liberty against his will, and imprisoned such person without sufficient reasons or probable cause appearing therefore.

50. Defendants NYC knew or should have known in the exercise of due and reasonable care that the aforementioned agents, servants and/or employees were malicious, vicious, potentially dangerous, and negligent and performing perjurious, criminal and illegal acts during the course of their employment duties.
51. Defendants NYC were negligent in the hiring, employment, training, retention, management, supervision, screening, testing, evaluating, monitoring, and investigating of the aforementioned agents, servants and/or employees.
52. That by reason of and in consequence of said negligence and lack of reasonable care on the part of defendants NYC and their agents, servants and/or employees, Plaintiff **GILBERT REAPE** suffered the afore-stated injuries.
53. Prior to May 28, 2016, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of plaintiff's rights.
54. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by the City of New York.
55. It was the policy and/or custom of the City or New York to inadequately supervise and train its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.
56. As a result of the above described policies and customs, police officers of the City of New York, including the defendant officers, believed that their actions would not be

properly monitored by supervisory offers and that misconduct would not be investigated or sanctioned, but would be tolerated.

57. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Plaintiff's rights alleged herein.

Wherefore, the Plaintiff requests that this Court:

- a. Award compensatory damages to Plaintiff against the Defendants, jointly and severally;
- b. Award costs of this action to the Plaintiff;
- c. Award reasonable attorney's fees and costs to the Plaintiff
- d. Award such other and further relief, as this Court may deem appropriate.

58. By reason of the foregoing, Plaintiff **GILBERT REAPE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION**  
**FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**  
**AGAINST ALL DEFENDANTS**

59. Plaintiff **GILBERT REAPE** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

60. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff **GILBERT REAPE**

protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

61. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **GILBERT REAPE** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.
62. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **GILBERT REAPE** and injury to her good name and reputation.
63. Said harm did in fact occur in this case, in that Plaintiff **GILBERT REAPE** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.
64. By reason of the foregoing, Plaintiff **GILBERT REAPE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR AN SIXTH CAUSE OF ACTION FOR PUNITIVE DAMAGES AGAINST  
ALL DEFENDANTS**

65. Plaintiff **GILBERT REAPE** repeats and re-alleges each and every allegation contained in paragraphs the above with full force and effect as if each were more fully set forth herein.

66. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff **GILBERT REAPE** well being, and were based on a lack of concern and ill-will towards Plaintiff.
67. Plaintiff **GILBERT REAPE** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS FOR FEDERAL CLAIMS**

68. This is a civil litigation action seeking damages against defendants for committing acts under color of law, and depriving plaintiff of rights secured by the Constitution and laws of the United States. Defendants, while acting in their capacities as policemen of the City of New York, State of New York, deprived Plaintiff of his liberty without due process of law, thereby depriving Plaintiff of his rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under 42 U.S.C. § 1983, 28 U.S.C. § 1343, and 28 U.S.C. § 1331.
69. Plaintiff asserts a Monell Claim against the City of New York as prior to May 28, 2016, the City of New York, the New York Police Department developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Mr. Reape's rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen's complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the City of New York. It was the policy and/or custom of the

City or New York to inadequately supervise and train its police officers, managers and employees including the respondent officers and ADA'S thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The respondent's agencies did not require appropriate in-service training or retraining of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others. As a result of the above described policies and customs, police officers of the City of New York, including the respondent officers, believed that their actions would not be properly monitored by supervisors and that misconduct would not be investigated or sanctioned, but would be tolerated. The above described policies and customs demonstrated a deliberate indifference on the part of policy makers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Plaintiff's right alleged herein. **GILBERT REAPE** was injured by reason of the negligence, recklessness, careless, and malicious prosecution perpetrated by each and every one of the respondents involved individually and jointly, their agents, servants employees and/or licensees in the control, supervision, hiring and training of the officers and employees who were deliberately indifferent to Mr. Reape's civil rights and rights under his employment contract.

70. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of plaintiff's rights.

**AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR FALSE ARREST AND  
MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF  
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

71. Plaintiff **GILBERT REAPE** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.
72. Plaintiff **GILBERT REAPE** sues all Defendants in their capacities.
73. On or about May 28, 2016, at approximately 1:15pm, Plaintiff **GILBERT REAPE** was lawfully in his truck at or about the intersection of Grand Avenue and Putnam Avenue when **P.O. PETER RAMOS Tax Reg. # 957067** and **P.O. JOHN DOE** approached Plaintiff and asked him questions about an assault in the area. **P.O. PETER RAMOS Tax Reg. # 957067** and **P.O. JOHN DOE** asked Plaintiff to get out of the car. Plaintiff had just moved and was wearing a tool belt complete with a box cutter. **P.O. PETER RAMOS Tax Reg. # 957067** and **P.O. JOHN DOE** arrested Mr. Reape and brought him to 88th Precinct where he remained for approximately 8 hours. Mr. Reape was released and all charges were dismissed on or about February 3, 2017.
74. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant or probable cause.
75. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **GILBERT REAPE**.

**AND FOR A SECOND CAUSE OF ACTION FOR ASSAULT  
IN VIOLATION OF HIS CONSTITUTIONAL RIGHTS**

76. Plaintiff **GILBERT REAPE** repeats and re-alleges each and every allegation contained above as if fully set forth herein.

77. Defendant **P.O. PETER RAMOS Tax Reg. #957067 and P.O. JOHN DOE** caused Plaintiff to apprehend and/or fear unfriendly contact.
78. A reasonable person in the same circumstances as Plaintiff would have apprehended and/or feared unfriendly contact.
79. Defendant **P.O. PETER RAMOS Tax Reg. #957067 and P.O. JOHN DOE** assaulted Plaintiff in violation of his civil rights.
80. Due to the Defendants' assault, Plaintiff **GILBERT REAPE** is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING AND SUPERVISION**

81. Plaintiff repeats and re-iterates each and every allegation above as if set forth at length herein.
82. Prior to on or about May 28, 2016, Defendants **NYC and NYPD** knew or should have known Defendant **P.O. PETER RAMOS Tax Reg. #957067 and P.O. JOHN DOE** to be unruly and to verbally threaten and to harass other human beings.
83. That defendants **NYC and NYPD** negligently hired and trained **P.O. PETER RAMOS Tax Reg. #957067 and P.O. JOHN DOE** negligently failed to supervise or discharge them from their employ, thereby causing and contributing to the above stated incident.
84. Plaintiff was caused to sustain serious injuries, caused to suffer pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur expenses for

medical care and attention; Plaintiff was and will continue to be rendered unable to perform his normal activities and duties having sustained a resultant loss there from.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR EGREGIOUS CONDUCT**

85. That as a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

86. Plaintiff repeats and re-alleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

87. The acts of **NYC, NYPD, P.O. PETER RAMOS Tax Reg. #957067 and P.O. JOHN DOE** complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff.

88. Plaintiff was caused to sustain serious injuries and to suffer pain, shock, mental anguish, embarrassment, humiliation, anxiety and bodily injury.

89. That as a result of the foregoing, Plaintiff **GILBERT REAPE** seeks punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

90. Plaintiff **GILBERT REAPE** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

91. As a result of the above actions, Defendants **NYC**, individually, and/or vicariously, by and through its agents, servants and /or employees, and **P.O. PETER RAMOS Tax Reg. #957067 and P.O. JOHN DOE**, failed to intervene to prevent or end the unlawful

conduct inflicted upon Plaintiff **GILBERT REAPE** by defendants **P.O. PETER RAMOS Tax Reg. #957067 and P.O. JOHN DOE.**

92. As a result of the foregoing, Defendants NYC individually and and/or vicariously by and through their agents servants, and/or employees, and **P.O. PETER RAMOS Tax Reg. #957067 and P.O. JOHN DOE**, displayed a deliberate indifference to Plaintiff **GILBERT REAPE** rights to be free from unreasonable searches and seizures.
93. As a result of the foregoing, Defendants NYC individually and/or vicariously by and through its agents servants, and/or employees, including **P.O. PETER RAMOS Tax Reg. #957067 and P.O. JOHN DOE** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiffs rights and physical well being.
94. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.
95. Plaintiff **GILBERT REAPE** repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein
96. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff **GILBERT REAPE** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.
97. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **GILBERT REAPE** without any further investigation of the incident. Defendants knew or had reasons to know that

the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

98. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **GILBERT REAPE** and injury to his good name and reputation.

99. Said harm did in fact occur in this case, in that Plaintiff **GILBERT REAPE** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

100. By reason of the foregoing, Plaintiff **GILBERT REAPE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR AN FIFTH CAUSE OF ACTION FOR PUNITIVE DAMAGES**  
**AGAINST ALL DEFENDANTS**

101. Plaintiff **GILBERT REAPE** repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein.

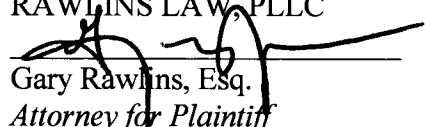
102. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff well being, and were based on a lack of concern and ill-will towards Plaintiff.

103. Plaintiff **GILBERT REAPE** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**WHEREFORE**, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: White Plains, NY  
August 24, 2017

RAWLINS LAW, PLLC

  
Gary Rawlins, Esq.

*Attorney for Plaintiff*

**GILBERT REAPE**

777 Westchester Ave, Suite #101

White Plains, NY 10604

Tel: (212) 926-0050

Fax: (347) 332-1592

TO:

CITY OF NEW YORK

Zachary Carter, Esq. (Corporation Counsel)

The City of New York Law Department

100 Church Street

New York, New York 10007

P.O. PETER RAMOS Tax Reg. #957067

88<sup>th</sup> Precinct

298 Classon Ave,

Brooklyn, NY 11205

P.O. JOHN DOE

## PLAINTIFF'S VERIFICATION

STATE OF NEW YORK, COUNTY OF KINGS, ss:

GILBERT REAPE, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

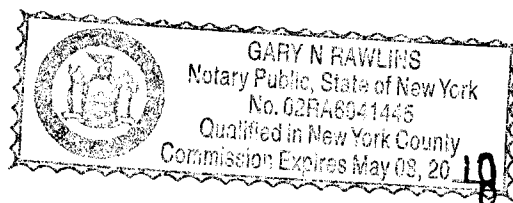
## COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED:

White Plains  
New York, NY  
AUGUST 28 2017x Gilbert ReapeSworn to before me this 28 day  
of AUGUST, 20 17

Notary Public



SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
GILBERT REAPE,

Plaintiff,

-against-

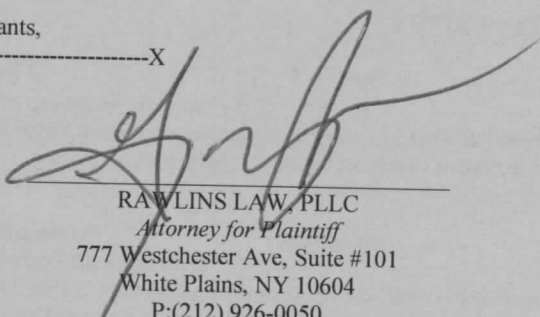
P.O. PETER RAMOS Tax Reg. #957067 and P.O.  
JOHN DOE,

Defendants,  
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Index No.:

Date Purchased:

**SUMMONS and VERIFIED  
COMPLAINT**

  
RAWLINS LAW, PLLC  
Attorney for Plaintiff  
777 Westchester Ave, Suite #101  
White Plains, NY 10604  
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TO:

CITY OF NEW YORK  
Zachary Carter, Esq. (Corporation Counsel)  
The City of New York Law Department  
100 Church Street  
New York, New York 10007

P.O. PETER RAMOS Tax Reg. #957067  
88<sup>th</sup> Precinct  
298 Classon Ave,  
Brooklyn, NY 11205

P.O. JOHN DOE

Service of a copy of the within is hereby admitted

Dated: \_\_\_\_\_

Attorney(s) for Defendant(s)

PLEASE TAKE NOTICE

- ☐ That the within is a (certified) true copy of a  
Entered in the office of the clerk of the within named court on

NOTICE OF ENTRY

- ☐ That an Order of which the within is a true copy will be presented for settlement to the Hon. \_\_\_\_\_ one of the  
judges of the within named Court.  
☐ NOTICE OF SETTLEMENT

Dated:

STATE OF NEW YORK, COUNTY OF KINGS

The undersigned, an attorney admitted to practice on the courts of New York State

- ☐ Certification      Certifies that the within  
By Attorney